

## Schedule of assumed facts

WC/2024/227 · Shepherd · accompanying the letter of instruction · [DATE]

This schedule identifies, by source and paragraph, the facts referred to in Part B of the letter of instruction. **The documents themselves accompany it, complete and unmarked.** Where a passage is quoted, the quotation is exact. **Section B records the matters the respondent has *not* admitted, or has denied, so that the position is complete.**

### A · ADMITTED BY THE RESPONDENT — RESPONSE TO THE NOTICE TO ADMIT FACTS, 18 FEBRUARY 2026

Paragraph numbers are those of the **Notice**. (The Response renumbers from ¶26; the cross-references have been checked.) These are facts admitted by the respondent in the proceeding.

| ¶  | Admitted fact                                                                                                                                                                                                                                         |
|----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1  | On <b>17–18 March 2024</b> the appellant was rostered to finish at 23:00 and commence his next shift at 06:00, <b>a break of only 7 hours</b> .                                                                                                       |
| 3  | The employer's fatigue risk management policy and the relevant Award require a <b>minimum break of 10 hours between shifts, or 8 hours by written agreement</b> .                                                                                     |
| 5  | Ms Tammy Reese stated in an email of <b>7 August 2023</b> : <i>"I do realise in this instance there was a <b>rostering error that was accidentally made by Chloe</b> with regards to night shifts."</i>                                               |
| 8  | <b>Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety.</b> The respondent adds that <i>"there was a procedure in place for this to occur."</i> |
| 33 | The clinical records contain a consultation record dated <b>16 November 2023</b> authored by Dr Priyal De Silva Nanayakkara. <i>(The entry is admitted as being in the record; its accuracy is not admitted — see B.)</i>                             |
| 38 | The report of Dr Ravikumar Krishnaiah <b>states that the appellant was suffering from Major Depressive Disorder</b> , diagnosed 13 February 2025. <i>(Admitted as what the report says; its accuracy is not admitted.)</i>                            |
| 40 | On <b>3 May 2024</b> Payroll Officer Elaine Grant emailed the line manager instructing her to <i>"submit an AVAC to correct these shifts"</i> for the appellant.                                                                                      |
| 41 | The <b>AVAC was submitted on 28 May 2024</b> . The respondent adds that on 21 May the line manager had said she was waiting on payroll confirmation.                                                                                                  |
| 46 | On <b>21 May 2024 at 12:33pm</b> the line manager emailed the appellant: <i>"I am waiting payroll confirmation... as soon as I do get that confirmation, I will submit an AVAC."</i>                                                                  |

### A2 · FROM THE RESPONDENT'S STATEMENT OF FACTS AND CONTENTIONS, 13 MAY 2026

These are the respondent's own positive statements in its pleading.

| ¶              | What the respondent says                                                                                                                                                                                                                                                                                                                                                                                                                 |
|----------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 14(e)<br>14(f) | On the special pandemic leave application (leave of <b>20–27 February 2024</b> ), which was declined for want of an attached statutory declaration: <i>"says that a review indicates that <b>in fact, the attachments were present</b> on the appellant's submission"</i> · <i>"says this was a matter of <b>human error by Ms Taylor</b> on the background of high work demands surrounding the management of staff with COVID-19".</i> |
| 22(a)          | On the rostering of 17–18 March 2024: <i>"says the shift was separated by only a <b>7-hour break (rather than an 8-hour break)</b> says that this was a result of <b>human error</b> and not intentional or repeated".</i>                                                                                                                                                                                                               |
| 22(c)          | <i>"says the appellant took <b>leave on 19 March 2024</b>", and says this was paid leave.</i>                                                                                                                                                                                                                                                                                                                                            |

### B · NOT ADMITTED, OR DENIED — AND WHAT THE RESPONDENT SAYS INSTEAD

Recorded so that no fact in section A is read as broader than it is.

| ¶  | The respondent's position                                                                                                                                                                                                                      |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 4  | <b>Denied</b> that there was no written agreement: <i>"in June 2020, the Appellant signed an agreement allowing an <b>8 hour break between shifts</b>."</i> <b>On that case the applicable minimum was 8 hours, and the break given was 7.</b> |
| 34 | Admits the 16 November 2023 entry ( <i>"No psychological illness such as depression/ psychosis"</i> ) <b>is listed in the record, but does not admit its accuracy.</b>                                                                         |

| ¶  | The respondent's position                                                                                                                                                                                                                                  |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 35 | <b>Denied.</b> The respondent asserts a <b>past medical history of anxiety and ADHD from 26 October 2022.</b>                                                                                                                                              |
| 47 | <b>Denied</b> that the line manager had simply held the instruction: the respondent says <i>"Ms Taylor needed confirmation from payroll and then she needed to be satisfied that the AVAC was accurate."</i> (The two emails at ¶¶40 and 46 are admitted.) |

## C · FROM THE LETTER OF THE CHIEF EXECUTIVE, METRO SOUTH HEALTH, 5 JUNE 2026

Item numbers are those of the letter. Read from source.

| Item | What the letter records                                                                                                                                                                                                                                    |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1–2  | Pre-upgrade SPOK records were not retained. <b>"However, a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."</b>                                                                                                            |
| 3(a) | <i>"All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed <b>solely via email or verbally</b> with the complainant."</i>                                     |
| 3(c) | <i>"there have been <b>no 'consequential' changes to operating procedures</b> over the period requested."</i>                                                                                                                                              |
| 4    | The requested fatigue risk assessment records <b>do not exist.</b> <i>"Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff..."</i> |
| 5    | <i>"The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred <b>after 30 June 2024</b> in connection with an organisational change related to the reporting lines for Switchboard."</i>                             |
| 7    | The requested fatigue risk management register entries <b>do not exist.</b>                                                                                                                                                                                |
| 15   | Enclosed: <b>leave takings report for the Applicant, 19 March 2024.</b>                                                                                                                                                                                    |

## D · FROM THE ROLE DESCRIPTION — ADMINISTRATION OFFICER, SWITCHBOARD SERVICES (AO3)

Quoted from the employer's own document. Read from source.

| Under                  | The position requires                                                                                                                                                                                                                                                                                 |
|------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Purpose                | <i>"The occupant of this position is required to work <b>continuous shift work over the full 24-hour period, 7 days a week.</b>"</i>                                                                                                                                                                  |
| Key responsibilities   | <i>"<b>Participate in the Emergency Response process</b> by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, <b>strictly adhering to protocols and timeframes.</b>"</i> |
|                        | <i>"<b>Maintain call queues to minimum at all times.</b>" · "The ability to <b>multitask and operate under pressure</b>, particularly where <b>high volume call traffic</b> is concerned."</i>                                                                                                        |
|                        | <i>"Maintain discretion and <b>exercise judgement</b> where necessary to resolve problems within the scope of your role; <b>in situations where precedence have not been set and procedures not defined.</b>"</i>                                                                                     |
|                        | <i>"Ability to work effectively as an individual with <b>limited supervision...</b>"</i>                                                                                                                                                                                                              |
|                        | <i>"<b>Collate information and maintain Omnivista database and SharePoint</b> to ensure information held within Switchboard Services is accurate and appropriate."</i>                                                                                                                                |
| Mandatory requirements | <i>"The position is a <b>continuous shift working role.</b> You must be able to work a roster which covers multiple shifts over a 24/7 period."</i>                                                                                                                                                   |

## E · FROM THE CERTIFICATE OF CAPACITY, 3 JULY 2026

The arrangement then in place is recorded as a *"continuation of existing arrangement ... **worked and tolerated ... without deterioration.**"* [CONFIRM the exact wording against the certificate before this schedule is sent]